

HOUSE No. 5000

The Commonwealth of Massachusetts

INITIATIVE PETITION OF ANDREW B. MIKULA AND OTHERS.

OFFICE OF THE SECRETARY.

BOSTON, January 7, 2026.

Timothy Carroll
Clerk of the House of Representatives
State House
Boston, Massachusetts 02133

Sir: — I herewith transmit to you, in accordance with the requirements of Article XLVIII of the Amendments to the Constitution “An Initiative Petition for a Law to Allow Single-Family Homes on Small Lots in Areas with Adequate Infrastructure,” signed by ten qualified voters and filed with this department on or before December 3, 2025, together with additional signatures of qualified voters in the number of 84,343, being a sufficient number to comply with the provisions of said Article.

Sincerely,

WILLIAM FRANCIS GALVIN
Secretary of the Commonwealth.

AN INITIATIVE PETITION.

Pursuant to Article XLVIII of the Amendments to the Constitution of the Commonwealth, as amended, the undersigned qualified voters of the Commonwealth, ten in number at least, hereby petition for the enactment into law of the following measure:

HOUSE No. 5000

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to allow single-family homes on small lots in areas with adequate infrastructure.

Be it enacted by the People, and by their authority, as follows:

1 SECTION 1. Section 3 of chapter 40A of the Massachusetts General Laws, as so
2 appearing, is hereby amended by adding the following paragraph:

3 No zoning ordinance or by-law shall prohibit, unreasonably restrict or require a special permit or
4 other discretionary zoning approval for the use of land or structures for a single-family residence
5 in a zoning district that allows residential uses; provided, that the single-family residence is fully
6 contained within a lot measuring equal to or greater than five thousand square feet in area and
7 with equal to or greater than fifty feet of frontage and which has access to public sewer service
8 and public water service; and provided further, that the use of land or structures for such a single-
9 family residence under this paragraph may be subject to reasonable regulations, including, but
10 not limited to, regulations concerning dimensional setbacks and the bulk and height of structures
11 and may be subject to restrictions and prohibitions on short-term rental. The Executive Office of
12 Housing and Livable Communities may issue guidelines or promulgate regulations to administer
13 this paragraph.

14 SECTION 2. This act shall take effect as provided in Article 48 of the Amendments to
15 the Massachusetts Constitution, as amended.

FIRST TEN SIGNERS

<u>NAME</u>	<u>RESIDENCE</u>	<u>CITY OR TOWN</u>
Andrew B. Mikula	1105 Massachusetts Avenue, #4B	Cambridge
Timothy D. Love	122 F Street	Boston
Donald Richard Pinto	16 Bluff Road	Hull
Gregory Maynard	4131 Avalon Drive	Weymouth
Molly Rose Goodman	225 Lamartine Street	Boston
John Thaddeus Smolak	711 Dale Street	North Andover
Judith A. Barrett	843 Franklin Street	Duxbury
Jonathan Berk	51 Lafayette Street, #504	Salem
Edward Ludwig Glaeser	42 Ripley Lane	Weston
Jesse Kanson-Benanav	52 Weld Hill Street, #2	Boston

CERTIFICATE OF THE ATTORNEY GENERAL.

September 3, 2025.

Honorable William Francis Galvin
Secretary of the Commonwealth
One Ashburton Place, Room 1705
Boston, Massachusetts 02108

Re: Initiative Petition No. 25-03: Initiative Petition for a Law to Allow
Single-Family Homes on Small Lots in Areas with Adequate Infrastructure

Dear Secretary Galvin:

In accordance with the provisions of Article 48 of the Amendments to the Massachusetts Constitution, I have reviewed the above-referenced initiative petition, which was submitted to me on or before the first Wednesday of August of this year.

I hereby certify that this measure is in proper form for submission to the people; that the measure is not, either affirmatively or negatively, substantially the same as any measure which has been qualified for submission or submitted to the people at either of the two preceding biennial state elections; and that it contains only subjects that are related or are mutually dependent and which are not excluded from the initiative process pursuant to Article 48, the Initiative, Part 2, Section 2.

In accordance with Article 48, I enclose a fair, concise summary of the measure.

Sincerely,

ANDREA JOY CAMPBELL,
Attorney General.

SUMMARY OF 25-03

This proposed law would allow single-family homes to be built in a residentially zoned area as long as the land on which it is to be constructed is at least 5,000 square feet, has at least 50 feet of land bordering the street, road, or public way that it faces, and has access to public sewer and water services.

The proposed law would allow cities and towns to reasonably regulate certain aspects of those single-family homes, including their height, distance from neighboring buildings, open space, parking requirements, and whether they can be rented out on a short-term basis. The proposed law would also allow the Executive Office of Housing and Livable Communities to issue guidance or regulations to administer the proposed law.